

This Motion is unopposed.

Analysis

It is the Plaintiff's burden to prove that Defendant received adequate notice of this motion.

Plaintiff mailed notice of motion and the motion to a Pittsburg address for Defendant. But this address is not on any court filings, and Plaintiff has never personally served Defendant at this address.

The parties entered into a CCP 664.6 agreement, signed by Defendant on 5/14/25, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called judgment to be entered in a specified amount, plus costs, less any credits for payments received.

Costs are listed as \$296.02, for court expenses.

The Stipulated Agreement was filed 12/15/25.

The balance, including costs and payments made by the Defendant, is \$2,810.55.

Disposition

The court finds that the Defendant was not properly served.

Plaintiff's Motion will be continued to 6/2/26, for Plaintiff to properly notice Defendant.

Plaintiff to file Order.

5. 9:00 AM CASE NUMBER: L25-01583
CASE NAME: WELLS FARGO BANK, N.A. VS. SANDRA TAYLOR
***HEARING ON MOTION IN RE: SUMMARY JUDGMENT**
FILED BY: WELLS FARGO BANK, N.A.
TENTATIVE RULING:

Background

Plaintiff filed a Motion for Summary Judgment. Plaintiff also submitted a document captioned, "Plaintiff's Evidence Submitted ISO MSJ," which consists of 2 exhibits that, in total, exceed 500 pages. There is no consistent pagination for Exhibit B, which consists of at least 500 pages on its own.

Plaintiff makes a number of references to these exhibits in their Separate Statement of Undisputed Facts, as well as their Declaration, yet doesn't attempt to identify any particular page range of either exhibit.

Analysis

This court will not attempt to wade through more than 500 pages of exhibits to find the page or pages that Plaintiff is referencing. And these exhibits appear to the court to be necessary to Plaintiff's

Motion.

Disposition

This motion will be continued to 6/2/26, 9am, for Plaintiff to provide page numbers to their exhibits, as well as to reference particular pages or narrow page ranges in any of their documents that accompany their motion.

Plaintiff to file Order and notify Defendant.

6. 9:00 AM CASE NUMBER: L25-05034

CASE NAME: DISCOVER BANK VS. JILL TRICE

***HEARING ON MOTION IN RE: TO SET ASIDE JUDGMENT AND DISMISS ACTION WITHOUT PREJUDICE**

FILED BY: DISCOVER BANK

TENTATIVE RULING:

Background

Plaintiff filed a Motion to Set Aside the Judgment and dismiss the matter without prejudice. The Motion was served on Defendant and is unopposed.

Analysis

Plaintiff alludes to an investigation and invokes the interests of justice but doesn't explain the reason for the dismissal request. However, since the Motion is unopposed and there is certainly no prejudice to the Defendant in granting the Motion, the court will grant.

Disposition

Plaintiff's Motion is granted.

Plaintiff to file Order.

7. 9:00 AM CASE NUMBER: L25-07554

CASE NAME: WELLS FARGO BANK, N.A. VS. NICK LINDQUIST

***HEARING ON MOTION IN RE: MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN REQ FOR ADM AS ADMITTED FILED BY PLN ON 11/17/25**

FILED BY: WELLS FARGO BANK, N.A.

***TENTATIVE RULING**

Plaintiff has filed a Motion for an Order Deeming the Truth of the Matters Specified as Admitted.

But the parties have submitted a stipulation, filed 2/13/26, calling for dismissal of the action and for the court to retain jurisdiction.